

		of \$11,137.50 (16.5 hours x \$675). Beehler’s fees are awarded in the amount of \$5,544 (7.2 hours x \$770). Wilens’ fees are awarded in the amount of \$10,395 (13.5 hours x \$770). Fennessey’s fees are awarded in the amount of \$75 (0.2 hours x \$375). Accordingly, the court awards a total of \$45,015.50 in attorney fees and \$1,320 in costs.
8.	SHANNON VS. BRIONES 2025-01503515	MOTION TO QUASH DISCOVERY SUBPOENA Plaintiff’s Motion to Quash Defendants’ Deposition Subpoena for Employment Records is DENIED in part and GRANTED in part. <u>Legal Standard</u> Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subds. (a)-(b).) When evaluating a privacy objection, the court applies the following framework: “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. . . . The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (<i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 552 [citations omitted]). Discovery should not be ordered “if the information sought is available from other sources or through less intrusive means.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Discovery, § 8:321 [citations omitted].) <u>Plaintiff’s Employment Records</u> At issue are three deposition subpoenas for the production of business records requesting Plaintiff’s employment records. (Mtn., Ex. 1.) The subpoenas request “[a]ny and all employment records, . . .” for Plaintiff. (Mtn., Ex. 1.)

Plaintiff moves to quash the subpoenas in their entirety, or in the alternative, narrow their scope to records relevant to the claims at issue.

“[P]ersonnel records and employment history are within the scope of the protection provided by the state and federal Constitutions.” (*San Diego Trolley, Inc. v. Superior Court* (2001) 87 Cal.App.4th 1083, 1097 [citations omitted; disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557, fn. 8].)

Plaintiff contends the subpoenas are overly broad as they request all employment records despite Plaintiff not alleging any claims for wrongful termination, discrimination, or emotional distress arising from employment. Rather, Plaintiff contends her claims implicate only the limited employment-related issues of wage loss and diminished earning capacity resulting from the injuries sustained in the subject collision.

As such, Plaintiff requests, in the alternative, narrowing the subpoenas to include those records that reflect:

- (1) Wage and earnings information;
- (2) Time missed from work;
- (3) Records relating to medical leave associated with the subject injuries; and
- (4) Records reflecting work restrictions or accommodation attributable to Plaintiff’s medical condition arising from the incident.

(Mtn. at 7:8-15.)

In opposition, Defendants contend the requested records are necessary to assess Plaintiff’s credibility, to determine the truth of the matters in dispute (i.e., whether she missed time from work), and to evaluate the liability issues in this matter. (Opp. at 4:11-13.)

Defendants further contend Plaintiff may have been required to have a physical prior to her employment and may have presented work restrictions unrelated to the subject incident. (Opp. at 4:13-15.)

The Court finds a request for “any and all employment records” is overly broad as they relate to employment issues unrelated to those claimed by Plaintiff. With respect to her employment, Plaintiff has placed at issue wage loss and diminished earning capacity resulting from the injuries allegedly sustained in the subject collision. The requested records would disclose Plaintiff’s employment information unrelated to those damages, such as, for example, any disciplinary action and medical information (unrelated to the body parts at issue).

While Defendants refer to the general interest in establishing credibility, veracity, and liability served by the records sought, “[t]he party seeking discovery must show a particularized need for the confidential information sought. The broad ‘relevancy to the

		subject matter’ standard is <i>not</i> enough here. The court must be convinced that the information is <i>directly relevant</i> to a cause of action or defense, i.e., that it is <i>essential</i> to determining the truth of the matters in dispute.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Discovery, § 8:320 [citations omitted, emphasis in original].) Similarly, Defendants’ speculation Plaintiff “may have” been required to have a physical prior to her employment or have work restrictions unrelated to the subject incident does not demonstrate the records are essential to determining the truth of the matters in dispute. Moreover, Defendants failed to demonstrate there are less intrusive means of obtaining the information, such as written discovery to Plaintiff. Thus, the Court DENIES Plaintiff’s motion to quash, but GRANTS Plaintiff’s motion to limit scope of the subpoenas to the following: (1) Wage and earnings information; (2) Time missed from work; (3) Records relating to medical leave associated with the subject injuries; and (4) Records reflecting work restrictions or accommodation attributable to Plaintiff’s medical condition arising from the incident.
9.	GONZALEZ VS. COSTCO WHOLESALE CORPORATION 2026-01540078	MOTION TO QUASH SUBPOENA Plaintiff Mayra Gonzalez’s motion to quash the Amended Deposition Subpoena for Production of Business Records served by defendant Costco Wholesale Corporation upon Friends of Family Health Center is GRANTED in part and DENIED in part. Pursuant to Code of Civil Procedure section 1987.1, the Court may “make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders,” upon motion by a party. (Code Civ. Proc. §1987.1(a) and (b)(1).) On May 7, 2026, Defendant served an Amended Deposition Subpoenas for the Production of Business Records on Friends of Family Health Center (“Subpoena”). The Subpoena contains two document requests which seek records from January 1, 2023 to the present concerning Plaintiff’s complaints or symptoms of a psychological nature, and billings related to Plaintiff’s complaints or symptoms of psychological conditions. Plaintiff objects to the Subpoena on the grounds of privacy.